ORDINANCE NO. 12-26 N.S.

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF RICHMOND, CALIFORNIA, ORDERING THE SUBMISSION OF A PROPOSITION OF INCURRING A BONDED INDEBTEDNESS TO THE QUALIFIED VOTERS OF THE CITY OF RICHMOND AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026, FOR THE PURPOSE OF FINANCING THE COST OF THE ACQUISITION, CONSTRUCTION AND IMPROVEMENT OF CERTAIN MUNICIPAL IMPROVEMENT PROJECTS

WHEREAS, on July 21, 2026, the City Council of the City of Richmond, California (the "City") adopted, by a two-thirds vote of all its members, a resolution entitled "A resolution of the City Council of the City of Richmond, California, determining that the public interest and necessity demand the acquisition, construction and improvement of certain municipal improvement projects, and their financing through the issuance of general obligation bonds," pursuant to which the City Council has found and determined that the public interest and necessity demand the issuance of general obligation bonds to finance the cost of acquisition, construction and improvement of certain municipal improvements, consisting generally of: the repair, reconstruction, and seismic retrofit of aging and seismically unsafe fire stations; the renovation of firefighter living quarters, including abatement and removal of mold and asbestos; the repair and replacement of deteriorating electrical, roofing, and plumbing systems; and other improvements to fire stations and related facilities necessary to support rapid 911 emergency medical and fire response, all as more particularly described in the Measure (as hereinafter defined); and

WHEREAS, existing funds and funding sources are inadequate to finance said improvements; and

WHEREAS, to provide for the issuance by the City of general obligation bonds to provide financing for said improvements, it is necessary for the City Council to adopt an ordinance ordering the submission of the proposition of incurring bonded indebtedness for such purpose to the qualified voters of the City at a municipal election; and

WHEREAS, the City Council desires to submit said ballot measure to the qualified voters of the City at the regular election to be held in the City on November 3, 2026, and to consolidate the bond election with other elections held within the City on that date;

The City Council of the City of Richmond do ordain as follows:

Section 1. Findings. The foregoing recitals are true and correct, and the City Council so finds and determines.

Section 2. Purpose and Intent. Pursuant to the authority provided by the California Government Code and California Elections Code, the City Council proposes to order the submission of a proposition of incurring bond indebtedness to the qualified voters of the City at the general municipal election to be held on November 3, 2026.

Section 3. Call for Election. The City Council hereby orders that a proposition of incurring bond indebtedness (hereinafter referred to as the "Measure") be submitted to the qualified voters of the City in the form, and for the purposes, set forth in the Measure at the regular election to be held on November 3, 2026.

Section 4. Measure. The City Council hereby submits the Measure to the qualified voters of the City, at the regular election to be held on November 3, 2026. The statement of the Measure shall be in substantially the form attached hereto as Exhibit A.

Section 5. Object and Purpose of Bonds. The Measure authorizes the issuance of general obligation bonds (the "Bonds"), the object and purpose of which is to finance the cost of the acquisition, construction and improvement of certain property to be used for municipal purposes (the "Improvements"), consisting of the following:

(a) Repair, replace, or reconstruct fire stations that are deteriorating and/or seismically unsafe, including stations that are approximately 80 years old, with reconstruction undertaken where the City Council determines that replacement is more practical than renovation;

(b) Renovate, upgrade, reconstruct, or acquire firefighter living quarters, whether located at a fire station or elsewhere, including abatement and removal of mold and asbestos, to meet current (then-applicable, i.e., as of the time of construction) building code and industry standards;

(c) Repair or replace deteriorating electrical systems and infrastructure at fire stations;

(d) Repair or replace deteriorating roofs, plumbing, and piping at fire stations to address leaks and deferred maintenance;

(e) Make structural, seismic, and other resiliency improvements at fire stations, in addition to those described above, to improve their ability to remain operational during and after earthquakes, fires, floods, and other disasters or emergencies;

(f) Repair, replace, or install fixtures and other permanently installed building systems at fire stations, including emergency generators, HVAC systems, and communications infrastructure, and make other building repairs and improvements at fire stations, to address conditions that impair their function in supporting rapid 911 emergency medical and fire response; and

(g) Construct, renovate, upgrade, reconstruct, or acquire training facilities, administrative offices, apparatus bays, and other facilities supporting Fire Department operations.

The Improvements together constitute, and are intended by the City Council to constitute, a single, unified plan and program of municipal improvements for the City, and the listing of individual projects is intended to describe the components of that unified plan.

The authorized Improvements also include all work, facilities and expenditures necessary and incidental to the projects described above. Examples of such work, facilities, and expenditures include, but are not limited to: costs of design, engineering, architect and other professional services, inspections, site preparation, utilities, landscaping, construction management and other planning and permitting, legal, accounting and similar costs; a customary construction contingency; demolition and disposal of existing structures; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; addressing unforeseen conditions revealed by construction or renovation, and other necessary improvements required to comply with existing building codes and other applicable law, including the Americans with Disabilities Act; costs of the bond election; bond issuance costs; project administration during the duration of such projects; and financing and interest costs on the Bonds. Proceeds of the Bonds shall be applied only to the acquisition or improvement of real property, including fixtures and other equipment constituting improvements to real property, and to costs necessary or incidental thereto, consistent with Section 1(b)(2) of Article XIII A of the California Constitution.

The final costs, locations, designs, layouts and other components of the Improvements will be determined as plans are finalized, construction bids are awarded, and projects are completed. The City Council shall determine the priority, order, and timing of the Improvements, the Improvements may be undertaken and completed in any order, and the completion of any individual project is not contingent upon the completion of any other project. The City Council cannot guarantee that the Bonds will provide sufficient funds to allow completion of all needed Improvements.

Section 6. Estimated Cost of Improvements. The estimated cost of the Improvements is $120,000,000. The estimated cost includes legal or other fees, the costs of printing the Bonds, and other costs and expenses incidental to or connected with the authorization, issuance and sale of the Bonds. To the extent the Improvements financed are revenue-producing public works, the cost of the Improvements may also include bond interest estimated to accrue during the construction period and for a period of not to exceed 12 months after completion of construction.

Section 7. Principal Amount of Bonds. The aggregate principal amount of the Bonds to be issued is not to exceed $120,000,000.

Section 8. Maximum Interest Rate. The maximum rate of interest to be paid on the Bonds shall be 12% per annum. Said interest shall be payable semiannually, except that interest for the first year after the date of the Bonds may be made payable at the end of said year.

Section 9. Issuance and Sale of Bonds. The City proposes to issue and sell the Bonds pursuant to Article 1, commencing with Section 43600, of Chapter 4 of Division 4 of Title 4 of the California Government Code, or Article 4.5, commencing with Section 53506, of Chapter 3 of Part 1 of Division 2 of Title 5 of the California Government Code, in one or more series, in the maximum amount and for the objects and purposes set forth above if two-thirds of all qualified voters voting on the proposition set forth above vote in favor thereof. The Bonds will be general obligations of the City payable from and secured by ad valorem taxes levied and collected in the manner prescribed by the laws of the State of California. The revenue generated from the ad valorem tax levied and collected will be used for the payment of debt service on the Bonds. All the Bonds shall be equally and ratably secured, without priority, by the taxing power of the City.

Section 10. Manner of Conducting Election. The election on the Measure held on November 3, 2026, shall be held and conducted, election officers appointed, voting precincts designated, ballots printed, polls opened and closed, ballots counted, and returned, returns canvassed, results declared, and all other proceedings incidental to and connected with the election shall be regulated and done in accordance with the provisions of law regulating the election with which it is consolidated.

Section 11. Procedure for Voting on Proposition. Ballots for the election shall be provided in the form and in the number provided by law. Voters shall be provided an opportunity to vote for or against the proposition on the ballot, in accordance with procedures to be adopted by the authorized officers of the County of Contra Costa charged with conducting the election.

Section 12. Accountability Requirements. In accordance with Sections 53410 and 53411 of the California Government Code, the City Council hereby adopts the following accountability requirements relating to the Bonds:

(a) The specific purpose of the Bonds is to finance the Improvements; and

(b) The proceeds from the sale of the Bonds will be used only for the purposes specified in the Measure and not for any other purpose; and

(c) The proceeds of the Bonds will be deposited into a separate account to be created and held by the City; and

(d) The Director of Finance of the City shall file a report with the Richmond City Council at least annually showing the amount of Bond proceeds collected and expended, and the status of the Improvements; and

(e) The City Council shall appoint a committee comprised of residents of the City to provide community oversight over the expenditure of the Bond proceeds. The size, composition, and specific responsibilities of the Community Oversight Committee will be determined by separate action of the City Council prior to the issuance of any of the Bonds; and

(f) All expenditures also will be subject to an annual independent financial audit to confirm that Bond expenditures are consistent with the intent of the Measure.

Section 13. Identification of Tax. The tax imposed by the Measure is an ad valorem tax levied upon taxable real property in the City, and will be used to pay the principal and interest on the Bonds.

Section 14. Official Actions. The Mayor, the City Manager, the Assistant City Manager, the Director of Finance, the City Clerk, and any of their designees, are hereby authorized to execute any documents and to perform all acts necessary to place the Measure on the ballot.

Section 15. Tax Rate Statement. The City Council hereby finds that the estimates and projections contained in the Measure and in the Tax Rate Statement required by Section 9401 of the California Elections Code presented at this meeting and on file with the City Clerk have been made based on currently available information, but depend on a number of variables which are subject to variation. Such estimates and projections have been made in good faith and are not binding or intended to be limitations on the terms of the general obligation bonds proposed to be authorized in the Measure. The City Manager and Director of Finance, each acting alone, are hereby authorized to finalize and execute the Tax Rate Statement, and to file the tax rate statement with the Contra Costa County Registrar of Voters.

Section 16. Interpretation. The provisions of this Ordinance, being necessary for the health, welfare, and safety of the City and its residents, is to be liberally interpreted to carry out its purposes. No error, irregularity or informality, and no neglect or omission of any officer, in any proceeding taken related to the submission of the Measure to the qualified voters of the City shall void or invalidate any such proceeding, any Bonds issued by the City or any levy of ad valorem taxes to pay principal of and interest on the Bonds.

Section 17. Severability. If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect any other provisions or applications, and to this end the provisions this Ordinance are declared to be severable.

Section 18. Publication of Ordinance. This Ordinance shall be published once a day for at least seven days in a newspaper published at least six days a week in the City, or once a week for two weeks in a newspaper published less than six days a week in the City. The first of said publications shall, in either event, be within 15 days after the adoption of this Ordinance. If there are no such newspapers, it shall be posted in three public places in the City for two succeeding weeks. No other notice need be given.

Section 19. Effective Date. In accordance with Section 36937(a) of the California Government Code, this Ordinance shall become effective immediately, as an ordinance relating to an election, upon its adoption by two-thirds vote of all the members of the City Council.

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First introduced at a regular meeting of the City Council of the City of Richmond held on July 21, 2026, and finally passed and adopted at a regular meeting held on July 28, 2026, by the following vote:

AYES:	Councilmembers Bana, Brown, Jimenez, Wilson, Zepeda, and Mayor Martinez.
NOES:	None.
ABSTENTIONS:	None.
ABSENT:	Vice Mayor Robinson.

PAMELA CHRISTIAN
CLERK OF THE CITY OF RICHMOND
(SEAL)

Approved:

EDUARDO MARTINEZ
Mayor

Approved as to form:

SHANNON MOORE
Interim City Attorney

State of California }
County of Contra Costa : ss.
City of Richmond }

I certify that the foregoing is a true copy of **Ordinance No. 12-26 N.S.**, passed and adopted by the City Council of the City of Richmond at a regular meeting held on July 28, 2026.

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Pamela Christian, Clerk of the City of Richmond

EXHIBIT A

MEASURE TO BE SUBMITTED TO THE VOTERS AUTHORIZING THE CITY OF RICHMOND, CALIFORNIA TO ISSUE GENERAL OBLIGATION BONDS TO FINANCE MUNICIPAL IMPROVEMENT PROJECTS

Section 1. Findings.

WHEREAS, rapid response to fires, medical emergencies, and other disasters depends on a fire department infrastructure that is safe, reliable, and operational when needed, and much of the fire station infrastructure of the City of Richmond, California (the "City") has aged well beyond its intended useful life and no longer reliably meets that need; and

WHEREAS, deferred maintenance and the physical deterioration of the City's aging fire stations, if left unaddressed, will continue to increase over time, resulting in higher repair costs, greater risk of facility failure, and increased risk to firefighters, paramedics, and the public they serve; and

WHEREAS, the City, like many California communities, faces heightened exposure to earthquakes, wildfires, and other natural disasters, and it is essential that public safety infrastructure be capable of remaining operational and supporting emergency response efforts during and after such events; and

WHEREAS, modern fire protection and emergency medical services require facilities and working conditions that meet current health, safety, and operational standards, and the City has an ongoing responsibility to maintain its public safety infrastructure accordingly; and

WHEREAS, it is in the best interest of the City and necessary for the preservation of the public peace, health, and safety to issue general obligation bonds to finance the acquisition, construction, and improvement of fire stations and related facilities, as more particularly described in this Measure, in order to protect the public and ensure the continued delivery of essential fire and emergency medical services; and

WHEREAS, the City intends to issue general obligation bonds to finance the acquisition, construction and improvement of municipal improvement projects, and the City Council has found and determined that the public interest and necessity demand the issuance of general obligation bonds to finance the cost of acquisition, construction and improvement of certain municipal improvements, consisting generally of: the repair, reconstruction, and seismic retrofit of aging and seismically unsafe fire stations; the renovation of firefighter living quarters, including abatement and removal of mold and asbestos; the repair and replacement of deteriorating electrical, roofing, and plumbing systems; and other improvements to fire stations and related facilities necessary to support rapid 911 emergency medical and fire response, all as more particularly described in this Measure; and

WHEREAS, existing funds and funding sources are inadequate to finance said improvements; and

WHEREAS, the issuance of general obligation bonds is the most cost-effective means available to the City to finance said improvements, as general obligation bonds typically bear lower interest rates than other forms of financing due to the security provided by the City's ad valorem tax pledge, thereby minimizing the overall cost to taxpayers of funding these necessary public safety improvements;

Section 2. Object and Purpose of Bonds.

This Measure authorizes the issuance of general obligation bonds (the "Bonds"), the object and purpose of which is to finance the cost of the acquisition, construction and improvement of certain property to be used for municipal purposes (the "Improvements"), consisting of the following:

(a) Repair, replace, or reconstruct fire stations that are deteriorating and/or seismically unsafe, including stations that are approximately 80 years old, with reconstruction

undertaken where the City Council determines that replacement is more practical than renovation;

(b) Renovate, upgrade, reconstruct, or acquire firefighter living quarters, whether located at a fire station or elsewhere, including abatement and removal of mold and asbestos, to meet current (then-applicable, i.e., as of the time of construction) building code and industry standards;

(c) Repair or replace deteriorating electrical systems and infrastructure at fire stations;

(d) Repair or replace deteriorating roofs, plumbing, and piping at fire stations to address leaks and deferred maintenance;

(e) Make structural, seismic, and other resiliency improvements at fire stations, in addition to those described above, to improve their ability to remain operational during and after earthquakes, fires, floods, and other disasters or emergencies;

(f) Repair, replace, or install fixtures and other permanently installed building systems at fire stations, including emergency generators, HVAC systems, and communications infrastructure, and make other building repairs and improvements at fire stations, to address conditions that impair their function in supporting rapid 911 emergency medical and fire response; and

(g) Construct, renovate, upgrade, reconstruct, or acquire training facilities, administrative offices, apparatus bays, and other facilities supporting Fire Department operations.

The Improvements described above together constitute, and are intended by the City Council to constitute, a single, unified plan and program of municipal improvements for the City, and the listing of individual projects is intended to describe the components of that unified plan.

The authorized Improvements also include all work, facilities and expenditures necessary and incidental to the projects described above. Examples of such work, facilities, and expenditures include, but are not limited to: costs of design, engineering, architect and other professional services, inspections, site preparation, utilities, landscaping, construction management and other planning and permitting, legal, accounting and similar costs; a customary construction contingency; demolition and disposal of existing structures; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; addressing unforeseen conditions revealed by construction or renovation, and other necessary improvements required to comply with existing building codes and other applicable law, including the Americans with Disabilities Act; costs of the bond election; bond issuance costs; project administration during the duration of such projects; and financing and interest costs on the Bonds. Proceeds of the Bonds shall be applied only to the acquisition or improvement of real property, including fixtures and other equipment constituting improvements to real property, and to costs necessary or incidental thereto, consistent with Section 1(b)(2) of Article XIII A of the California Constitution.

The final costs, locations, designs, layouts and other components of the Improvements will be determined as plans are finalized, construction bids are awarded, and projects are completed. The City Council shall determine the priority, order, and timing of the Improvements, the Improvements may be undertaken and completed in any order, and the completion of any individual project is not contingent upon the completion of any other project. The City Council cannot guarantee that the Bonds will provide sufficient funds to allow completion of all needed Improvements.

Section 3. Estimated Cost of Improvements.

The estimated cost of the Improvements is $120,000,000. The estimated cost includes legal or other fees, the costs of printing the Bonds, and other costs and expenses incidental to or connected with the authorization, issuance and sale of the Bonds. To the extent the Improvements financed are revenue-producing public works, the cost of the Improvements may also include bond interest estimated to accrue during the construction period and for a period of not to exceed 12 months after completion of construction.

Section 4. Principal Amount of Bonds.

The aggregate principal amount of the Bonds to be issued is not to exceed $120,000,000.

Section 5. Maximum Interest Rate.

The maximum rate of interest to be paid on the Bonds shall be 12% per annum.

Section 6. Accountability Requirements.

The following accountability measures apply to the issuance of the Bonds pursuant to this Measure:

(a) The specific purpose of the Bonds is to finance the Improvements; and

(b) The proceeds from the sale of the Bonds will be used only for the purposes specified in this Measure and not for any other purpose; and

(c) The proceeds of the Bonds will be deposited into a separate account to be created and held by the City; and

(d) The Director of Finance of the City shall file a report with the Richmond City Council at least annually showing the amount of Bond proceeds collected and expended, and the status of the Improvements; and

(e) The City Council shall appoint a committee comprised of residents of the City to provide community oversight over the expenditure of the Bond proceeds. The size, composition, and specific responsibilities of the Community Oversight Committee will be determined by separate action of the City Council prior to the issuance of any of the Bonds; and

(f) All expenditures also will be subject to an annual independent financial audit to confirm that Bond expenditures are consistent with the intent of the Measure.